

STATE OF NEW YORK

9447--A

IN SENATE

March 12, 2026

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the village law and the public officers law, in relation to qualifications to hold the positions of village treasurer, deputy village treasurer, village clerk, deputy clerk and building inspector in the village of Briarcliff Manor

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 3-300 of the village law is amended by adding a new
2 subdivision 37 to read as follows:

3 37. Notwithstanding any provisions of this chapter or any other chap-
4 ter, general law, local law, ordinance, or special act, the village
5 board of trustees of the village of Briarcliff Manor, Westchester coun-
6 ty, may, by resolution, provide that the office of village treasurer,
7 deputy village treasurer, village clerk, deputy clerk and building
8 inspector of such village may be held by a person who is not a resident
9 of such village, provided that such person resides within Westchester
10 county, or an adjoining county within the state of New York.

11 § 2. Section 3 of the public officers law is amended by adding a new
12 subdivision 77 to read as follows:

13 77. In the village of Briarcliff Manor, Westchester county, the
14 provisions of this section requiring a person to be a resident of the
15 political subdivision or municipal corporation of the state for which
16 they shall be chosen or within which their official functions are
17 required to be exercised, shall not prevent a person from holding the
18 office of village treasurer, deputy village treasurer, village clerk,
19 deputy clerk or building inspector, provided that such person resides
20 within Westchester county, or an adjoining county within the state of
21 New York. Provided, however that persons performing the functions of
22 such appointed positions in any other municipality shall be a resident
23 of such municipality unless otherwise provided by an act of the state
24 legislature.

25 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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